

TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Hearing Date: July 20, 2026 at 1:30 pm

Rulings Posted: 7/20/26 at 12:45 pm

#	Case Name	Tentative
301	<i>Sanders vs. California Department of Transportation</i>	Defendant Robert Betha’s demurrer to the fourth amended complaint (4AC) of plaintiff Marvin Sanders is SUSTAINED without leave to amend as to the 1st through 9th, and 11th causes of action and OVERRULED as to the 10th cause of action. Defendant’s request for judicial notice is GRANTED. (See Evid. Code § 452, subd. (c).) <u>1st, 3rd, 4th causes of action (discrimination, retaliation and failure to prevent):</u> The 4AC fails to state facts sufficient to constitute these claims. Individual supervisory employees are not personally liable for employment discrimination or

	retaliation under the California Fair Employment and Housing Act, Government Code section 12900 et. seq. (FEHA). (See <i>Reno v. Baird</i> (1998) 18 Cal.4th 640, 645-646; <i>Janken v. GM Hughes Electronics</i> (1996) 46 Cal.App.4th 55, 62; <i>Jones v. Lodge at Torrey Pines Partnership</i> (2008) 42 Cal.4th 1158, 1173.) <u>2nd cause of action (workplace harassment):</u> The 4AC fails to state facts sufficient to constitute this claim. Plaintiff's claim is time-barred because he did not file suit against Defendant until August 18, 2025, more than two years after he received the right-to-sue notice from the California Civil Rights Department (CRD). (See Gov. Code § 12965, subd. (c)(1)(C)[a civil action must be brought one year from the date of CRD right-to-sue notice]; 4AC ¶ 22.3, RJN, Ex. 1.) The relation back doctrine does not apply because the allegations in the original complaint show Plaintiff was not ignorant of Defendant's name or the facts giving rise to the harassment claim. (See Code of Civ. Proc. § 474; <i>Marasco v. Wadsworth</i> (1978) 21 Cal.3d 82, 88 [fictitious name is proper is plaintiff is unaware of defendant's identity or plaintiff was unaware of culpability]; ROA 2 – Compl. ¶¶ 3, 25.) <u>5th cause of action (assault and battery):</u> The 4AC fails to state facts sufficient to constitute this claim. Plaintiff's claim is time-barred because he did not file suit against Defendant until August 18, 2025, more than five years after the date of the alleged injury. (Lab. Code § 5405 [statute of limitations is one year from the date of injury]; 4AC ¶ 62.) <u>6th cause of action (violation of Ralph Civil Rights Act):</u> The 4AC fails to state facts sufficient to constitute this claim. Plaintiff's claim is time-barred because he did not file suit against Defendant until August 18, 2025, more than five years after the alleged incident. (Code of Civ. Proc.
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	§ 338, subd. (n) and Civ. Code § 52, subd. (b)(2) [statute of limitations is three years]; 4AC ¶ 70.) The relation back doctrine does not apply because Plaintiff never alleged any facts about the July 28, 2020 incident in the original complaint. (See <i>Barrington v A.H. Robins Co.</i> (1985) 39 Cal.3d 146, 154 [for the relation back doctrine to apply, the amended complaint must be based on the same operative facts alleged in the original complaint].) <u>7th and 8th causes of action (violation of Labor Code §§ 98.6 and 1102.5):</u> The 4AC fails to state facts sufficient to constitute these claims. Labor Code §§ 98.6 and 1102.5 applies to employers, i.e., individual supervisory employees are not personally liable for violations of these provisions. (See Labor Code §§ 98.6, subd. (b)(2),(3), 1102.5, subds. (a), (b); <i>Mewalla v. Middleman</i> (N.D. Cal. 2022) 601 F. Supp.3d 574, 608-609; <i>Tillery v. Lollis</i> (E.D. Cal. 2015) 2015 WL 487311, *8-9; see also <i>Jones v. Lodge at Torrey Pines Partnership</i> (2008) 42 Cal.4th 1158, 1164-1168.) <u>10th cause of action (intentional infliction of emotional distress):</u> The 4AC states facts sufficient to constitute this cause of action. The workers compensation exclusivity rule does not bar a suit for emotional distress damages attributed to unlawful discrimination, harassment or other misconduct that “exceeds the normal risks of the employment relationship.” (<i>Saunders v. Sally Beauty Supply LLC</i> (C.D. Cal. 2020) 2020 WL 1847620, * 2; 4AC ¶¶ 93, 95.) <u>9th and 11th causes of action:</u> Plaintiff concedes the 4AC fails to state sufficient facts to constitute these causes of action. Defendant shall file an answer by 8/3/26. The court sets a status conference for 8/10/26 at 8:45am in Dept. C24. Defendant shall give notice.
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302	<i>Noriega vs. Avalonbay Communities, Inc.</i>	Before the Court are four motions. The demurrer by Avalonbay Communities, Inc. aka Eaves Santa Margarita (Avalon) to the First Amended Complaint (FAC) filed by plaintiff Carlos Noriega is SUSTAINED as to the 1st, 4th, 5th, 10th, 12th, 13th, 18th, and 19th causes of action and OVERRULED as to the remainder. The motion to strike by Avalon is GRANTED. The demurrer by 1st Solution Construction Service (1st Solution) to the FAC is SUSTAINED as to the 3rd, 4th, 9th, 12th, 13th, 15th, 17th, 20th and 21st causes of action and OVERRULED as to the remainder. The motion to strike by 1st Solution is GRANTED. Plaintiff shall have leave to file a second amended complaint no later than 8/3/26. <u>DEMURRER BY AVALON</u> <u>1st cause of action – Premises Liability:</u> this cause of action is insufficiently pled. (See <i>Castellon v. U.S. Bancorp</i> (2013) 220 Cal.App.4th 994, 998 [elements]; insufficient facts pled as to “unreasonable risk of harm,” “fail[ure] to repair or warn of the condition” and Plaintiff was injured by the “continuous unsafe, dangerous, and uninhabitable conditions.” FAC ¶¶63, 64 & 66.) Demurrer is SUSTAINED. <u>4th cause of action – Private Nuisance:</u> this cause of action is insufficiently pled. (See <i>Dep’t of Fish & Game v. Superior Ct.</i> (2011) 197 Cal. App. 4th 1323, 1352 [elements]; insufficient facts pled showing, inter alia, defendants created a condition that “interfere[d] with the comfortable enjoyment of life or property; or was a fire hazard or other potentially dangerous condition” in either the unit
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	or common areas (FAC ¶88) or how Plaintiff was “harmed” (FAC ¶93).] Demurrer is SUSTAINED. <u>5th cause of action - Breach Of Contract (Covenant Of Quiet Enjoyment) AND 10th cause of action - Breach Of Contract Third Party Beneficiary (Covenant Of Quiet Enjoyment):</u> These causes of action are insufficiently pled. (See <i>Andrews v. Mobile Aire Ests.</i> (2005) 125 Cal. App. 4th 578, 588–90 [elements]; insufficient facts pled showing, inter alia, what the defendants failed to repair, the “acts or omissions” upon which this cause of action is based or how there was a substantial interference as stated in ¶¶101 & 162.) Demurrer is SUSTAINED. <u>12th cause of action - Intentional Infliction Of Emotional Distress:</u> This cause of action is insufficiently pled. (See <i>Hughes v. Pair</i> (2009) 46 Cal. 4th 1035, 1050 [elements]; plaintiff fails to plead, inter alia, extreme and outrageous conduct. (FAC ¶¶191-192). Demurrer is SUSTAINED. <u>13th cause of action - Negligent Infliction Of Emotional Distress:</u> The 13th cause of action is merely a duplicate of the 1st cause of action for premises liability. The 13th cause of action adds nothing to the complaint by way of a theory of recovery. “A claim of negligent infliction of emotional distress is not an independent tort but the tort of negligence to which the traditional elements of duty, breach of duty, causation, and damages apply.” (<i>Wong v. Jing</i> (2010) 189 Cal.App.4th 1354, 1377.) A demurrer may be sustained when a cause of action is duplicative of another cause of action and thus adds nothing to the complaint by way of fact or theory of recovery. (<i>Palm Springs Villas II Homeowners Association, Inc. v. Parth</i> (2016) 248 Cal.App.4th 268, 290) Accordingly, the demurrer is SUSTAINED.
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18th cause of action - Business And Professions Code § 17200 “Fraudulent”: This cause of action is insufficiently pled. “A plaintiff alleging unfair business practices under [the UCL] must state with reasonable particularity the facts supporting the statutory elements of the violation.” (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 619; see also *Gutierrez v. Carmax Auto Superstores California* (2018)19 Cal.App.5th 1234, 1261; plaintiff fails to plead, inter alia, any facts relating to such things as the hazard Avalon allegedly said would be repaired, what injury was suffered, who made the misrepresentations or when they made the misrepresentations. The mere conclusory statements about unspecified misrepresentations causing harm are insufficient. Demurrer is SUSTAINED.

19th cause of action – B&P §17500 - False Advertising: This cause of action is insufficiently pled. (See Business and Professions Code §17500; see also *Peviani v. Arbors at California Oaks Prop. Owner, LLC* (2021) 62 Cal.App.5th 874, 888–89; plaintiff fails to identify, inter alia, a statement that was “untrue or misleading, and which is known, or which by the exercise of reasonable care should be known, to be untrue or misleading.” Demurrer is SUSTAINED.

In addition to the foregoing, Avalon challenges the Sixth, Seventh, Eighth, Eleventh, Twelfth, Thirteenth, Fourteenth, Sixteenth, Eighteenth, and Nineteenth Causes Of Action asserting they do not relate back to the filing of the original complaint. (Demurer at 12:14-15) However, the demurrer does not address the legal authority for application of the statute of limitations to each cause of action. Assertions unsupported by legal authority are presumed to lack merit. (*Atchley v. City of Fresno* (1984) 151 Cal.App.3d 635) As a result, the

demurrer based on “relation back” is
OVERRULED.

Finally, although the notice of demurrer makes reference to a challenge to the 6th, 7th, 8th, 11th, 14th, and 16th causes of action, there is only the assertion that they are insufficiently pled (Demurrer at 12:14-15) without any legal authority or argument presented therefor. Accordingly, the demurrer is OVERRULED as to these causes of action.

DEMURRER BY 1ST SOLUTION

Request for Judicial Notice: GRANTED. (Evid. Code §452(d); See also, *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605 [“It is true that a court may take judicial notice of the pleading party’s discovery responses (or those of the party’s authorized agent) to the extent “they contain statements of the [party] or his agent which are inconsistent with the allegations of the pleading before the court.”].) Plaintiff’s opposition (ROA 349) does not dispute a specific fact contained in the documents.

2nd cause of action – Negligence: Plaintiff alleges 1st Solution failed to address leaks during the “residence period” (FAC ¶72) and that he was harmed as a result (FAC ¶73). This is sufficient for purposes of demurrer. (*Ladd v. Cty. of San Mateo* (1996) 12 Cal. 4th 913, 917 [elements]) Demurrer is OVERRULED.

3rd cause of action – Risk of Harm: This cause of action is a duplicate of the 2nd cause of action. A demurrer may be sustained when a cause of action is duplicative of another cause of action and thus adds nothing to the complaint by way of fact or theory of recovery. (*Palm Springs Villas II Homeowners Association, Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290; *Rodrigues v. Campbell*

	Industries (1978) 87 Cal.App.3d 494, 501 [finding demurrer was properly sustained without leave to amend as to cause of action that contained allegations of other causes and “thus add[ed] nothing to the complaint by way of fact or theory of recovery”]; Award Metals, Inc. v. Superior Court (1991) 228 Cal.App.3d 1128, 1135.) Because there does not appear to be anything to differentiate the 2nd and 3rd causes of action, the demurrer is SUSTAINED. <u>4th cause of action – Private Nuisance:</u> This cause of action is insufficiently pled. (See <i>Dep’t of Fish & Game v. Superior Ct.</i> (2011) 197 Cal. App. 4th 1323, 1352 [elements]; insufficient facts pled showing, inter alia, defendants created a condition that “interfere[d] with the comfortable enjoyment of life or property; or was a fire hazard or other potentially dangerous condition” in either the unit or common areas (FAC ¶88) or how Plaintiff was “harmed” (FAC ¶93).] Demurrer is SUSTAINED. <u>9th cause of action – Breach of Repair Contract – Third party beneficiary:</u> This cause of action is insufficiently pled. (<i>Richman v. Hartley</i> (2014) 224 Cal.App.4th 1182, 1186) “If the action is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference.” (<i>Harris v. Rudin, Richman & Appel</i> (1999) 74 Cal.App.4th 299, 307.) Demurrer is SUSTAINED. <u>12th cause of action - Intentional Infliction Of Emotional Distress:</u> This cause of action is insufficiently pled. (See <i>Hughes v. Pair</i> (2009) 46 Cal. 4th 1035, 1050 [elements]; plaintiff fails to plead, inter alia, extreme and outrageous conduct. (FAC ¶¶191-192). Demurrer is SUSTAINED.
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	<u>13th cause of action - Negligent Infliction Of Emotional Distress:</u> The 13th cause of action is merely a duplicate of the 1st cause of action for premises liability. The 13th cause of action adds nothing to the complaint by way of a theory of recovery. “A claim of negligent infliction of emotional distress is not an independent tort but the tort of negligence to which the traditional elements of duty, breach of duty, causation, and damages apply.” (<i>Wong v. Jing</i> (2010) 189 Cal.App.4th 1354, 1377.) A demurrer may be sustained when a cause of action is duplicative of another cause of action and thus adds nothing to the complaint by way of fact or theory of recovery. (<i>Palm Springs Villas II Homeowners Association, Inc. v. Parth</i> (2016) 248 Cal.App.4th 268, 290) Accordingly, the demurrer is SUSTAINED. <u>15th, 17th and 20th causes of action based on Business & Prof. Code §17200:</u> Plaintiff has failed to plead sufficient facts. Business & Prof. Code §17204 limits standing to those persons who have “suffered injury in fact and has lost money or property as a result of the unfair competition.” (See also, <i>Kwikset Corp. v. Superior Ct.</i> (2011) 51 Cal. 4th 310, 322.) Plaintiff does not dispute the arguments made by 1st Solution, and, in fact, does not mention Section 17204 in its opposition. (<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”].) <u>21st cause of action – B&P §17500 - False Advertising:</u> This cause of action is insufficiently pled. (See Business and Professions Code §17500; see also <i>Peviani v. Arbors at California Oaks Prop. Owner, LLC</i> (2021) 62 Cal.App.5th 874, 888–89; plaintiff fails to identify, inter alia, a statement that was “untrue or misleading, and which is known, or which by the exercise of reasonable care
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should be known, to be untrue or misleading.”
Demurrer is SUSTAINED.

Sham Pleading Doctrine: 1st Solution also demurs to the entire complaint based on the sham pleading doctrine. The court does not find that, as to 1st Solution, the facts in the original complaint have been contradicted by the facts or positions stated in the FAC. (*Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal. App. 4th 336, 343–44) Accordingly, the demurrer to the entire complaint is OVERRULED.

MOTIONS TO STRIKE BY AVALON AND 1ST SOLUTION

The complaint fails to state facts sufficient to support the punitive damages claim. (See Civ. Code, § 3294 [malice, oppression, or fraud]; *College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725 [despicable conduct]; *Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166 [must plead ultimate facts]; *Wilson v. Southern California Edison Co.* (2015) 234 Cal.App.4th 123, 164 [must show act authorized, or knowingly ratified by an officer, director, or managing agent of the corporation.]

The motions, to the extent not made moot by the ruling on the demurrer, are GRANTED.

ORDER TO SHOW CAUSE: Also on calendar is an OSC re: dismissal of defendant Friendship Shelter for failure to serve. Considering the court’s rulings today, and given that leave to amended is granted, the court will vacate the OSC. All defendants must be properly served with the amended pleading. Once an amended complaint is filed, the court will vacate the 10/19/26 motion and demurrer.

Avalon shall give notice.

303	<i>Mittera Group, Inc. vs. Celebration Mailers, LLC</i>	Defendant Mittera Group, Inc.'s demurrer to the fourth amended complaint of plaintiff Celebration Mailers, LLC is CONTINUED to 8/3/26 at 1:30pm in Dept. C24. Defendant filed a reply addressing the merits of an opposition apparently served by Plaintiff. However, there is no opposition reflected in the court record. It appears Plaintiff mistakenly filed the wrong document on July 7, 2026. (See ROA 133.) Plaintiff shall file the opposition forthwith, and no later than five (5) court days before the next hearing. The court also continues the CMC to 8/3/26 at 1:30pm. Defendant shall give notice.
304	<i>Ocampo vs. General Motors LLC</i>	General Motors' (GM) Motion to Tax Costs is GRANTED in part and DENIED in part. A prevailing party in an action "is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032(b).) § 1033.5 sets out the list of items allowable as costs under § 1032. (Code Civ. Proc., § 1033.5(a)(1)-(16).) Costs "shall be reasonably necessary to the conduct of litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., § 1033.5(c)(2).) Items not listed, upon assessment, may be allowed or denied at the court's discretion. (Code Civ. Proc., § 1033.5(c)(4).) Civil Code § 1794(d) also mandates that prevailing buyers in Song-Beverly actions recover attorney's fees "determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civil Code § 1794(d).)

		GM contends filing and motion fees relating to Plaintiffs' motion to compel were unnecessary because the motion practice was one-sided and the motions were never heard. Motion fees are allowable costs under § 1033.5. (Code Civ. Proc., § 1033.5(a)(1).) However, because the motion was filed after the mandatory settlement conference statement, before the notice of settlement, and was ultimately not heard, there is no showing the motion filing fee was a necessarily incurred cost for litigation. Objections against all other mandatory fees such as jury fees, service of process fees, and fees for electronic filings or service are not well founded. The court deems such costs reasonably necessary to advance litigation and effectuate the settlement. The court will allow such costs to be recovered because Defendant did not meet its burden of showing the costs were not reasonable or necessary. The court agrees that costs regarding filing and motion fees relating to the motion to compel filed 08/01/2025 were not reasonably necessary to advance litigation or effectuate the settlement. Accordingly, the court GRANTS the motion, in part, and taxes Plaintiffs' Memorandum of Costs in the amount of \$72.36 (\$328.62 - \$256.26). Plaintiffs are awarded \$714.87 (\$787.23 - \$72.36) in costs. The OSC remains on calendar for 7/20/26. GM shall give notice.
305	<i>Phol vs. Synched, LLC</i>	Scott Shibayama's (Moving Counsel) motion to be relieved as counsel for Defendant Synched, LLC c/o Ratchel Pinlac is GRANTED. On its own motion, the court sets an OSC re: status of unrepresented entity for 10/5/26 at 8:45 a.m. The court will interlineate the new hearing date for the order to show cause re: status of unrepresented

		entity into the proposed order and will sign the amended order. The court will amend the proposed order to check box 3(b), such to affirm Moving Counsel has properly served client by mail and submitted a declaration. The court will amend the proposed order to check box 5(a), such that the order will become effective upon the filing of the proof of service of the signed order. The court will amend the dates listed under 7(a), 8, and 9(b) to reflect the correct trial date of 12/07/2026. The Court will sign the amended order. Moving Counsel shall serve the signed order on Defendant and all parties that have appeared. Moving Counsel will be relieved as counsel of record for Defendant effective upon the filing of the proof of service of the signed order upon Defendant and all other parties. Moving Counsel shall give notice.
306	<i>DeLisio vs. Renewal By Andersen, LLC</i>	Before the court are defendant Renewal By Andersen, LLC's (Defendant), unopposed demurrer and motion to strike portions of plaintiffs Frederick W. Delisio and Paula Delisio's (Plaintiffs together) complaint. As set forth below, the demurrer is OVERRULED and the motion to strike is GRANTED in part and DENIED in part. <u>Demurrer</u> Defendants demur to the fourth, fifth, and sixth causes of action (COA) based on lack of sufficient facts. (Code of Civil Procedure section 430.10, subdivision (e).)

	As to the fourth COA for Violation of the Consumer Legal Remedies Act (CLRA), Plaintiffs alleged they ordered and paid for one type/quality of window, but were instead different windows were installed, and that Defendant made certain representations regarding the windows and transaction which were not delivered. (Complaint ¶¶ 7, 10-11.) The allegations are sufficient to support violations of Civil Code section 1770, subdivisions (a)(5), (7), (10), and (16). As to the fifth COA for Violation of Business and Professions Code Section 17200 (Unfair Business Practices, “[s]ection 17200’s “unlawful” prong “borrows violations of other laws ... and makes those unlawful practices actionable under the UCL.” [Citation.] “‘[V]irtually any law or regulation—federal or state, statutory or common law—can serve as [a] predicate for a ... [section] 17200 “unlawful” violation.’ [Citation].” [Citations.]” (<i>Klein v. Chevron U.S.A., Inc.</i> (2012) 202 Cal. App. 4th 1342, 1383, as modified on denial of reh'g (Feb. 24, 2012).) “[A] violation of the CLRA, which “declares numerous practices in the sale of goods or services to consumers to be unlawful” [Citation], may form the predicate “unlawful act” for the purposes of a UCL claim.” (<i>Ibid.</i>) As the complaint adequately states a claim for violation of the CLRA, Plaintiffs have also properly stated at least a claim under the “unlawful” prong of section 17200. (<i>Id.</i>, at 1384.) Finally, as to the sixth COA for Financial Elder Abuse, the elements of elder financial abuse are: 1) Plaintiff is 65-years of age or older at the time of the conduct; 2) Defendant took, secreted, appropriated, obtained, or retained real or personal property of Plaintiff for a wrongful use or with intent to defraud, or both; 3) Plaintiff was harmed. (Welfare & Institutions Code section 15610.30.) “Bad faith or intent to defraud [are] no longer
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required in elder or dependent adult abuse cases.” (*Stebley v. Litton Loan Servicing, LLP* (2011) 202 Cal. App. 4th 522, 527.) Plaintiffs have pled sufficient facts to support this COA. (Complaint ¶¶ 1, 39, 41.)

The demurrer is overruled.

Motion to Strike

Defendant also moves to strike attorney fee and punitive damages language from the Complaint.

As for the attorney fees, those are available to a prevailing party under the CLRA and financial elder abuse. (Civil Code section 1780; Welfare & Institutions Code section 15657.5, subdivision (b).) Defendant made no specific arguments regarding attorney fees. Plaintiffs have adequately pled facts to support attorney fees under the CLRA and under Welfare and Institutions Code section 15657. The motion is **DENIED** as to attorney fees.

Although punitive damages are available under the CLRA and Elder Abuse COA, they must be properly pled. (Civil Code section 3294; *Grieves v. Superior Court* (1984) 157 Cal. App. 3d 159, 166.)

Additionally, as Defendant is a corporate entity, Plaintiffs must allege an individual who spoke or acted on behalf of the company had authority to do so. (*West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal. App. 4th 780, 793.) Plaintiffs have not pled the fraud, malice, or oppression prongs sufficiently to permit punitive damages at this point.

The motion is **GRANTED** as to punitive damage language.

Plaintiffs are given leave to file an amended complaint no later than 8/3/26.

		The court continues the 7/20/26 CMC to 10/5/26 at 8:45am. Defendant shall give notice.
308	<i>Fencecorp, Inc. vs. U.S. Specialty Insurance Company</i>	The Demurrer filed on 3/19/26 by Defendant U.S. Specialty Insurance Company (Defendant), as to the Complaint filed on 1/14/26 by Plaintiff FenceCorp. Inc. (Plaintiff), is OVERRULED. Defendant asserts that the entire action is time-barred, based solely upon a statement in the Notice of Completion (NOC) recorded by the City of Santa Ana on 6/26/25. (RJN Ex. 1.) Specifically, the NOC states that the “work improvement on said property was accepted as completed on January 20, 2025.” Defendant argues that the claim here is thus time-barred. However, although judicial notice of official records is proper under Ev. Code §452(d), courts do not take judicial notice as to the truth of disputed facts asserted therein. (<i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) Here, Plaintiff’s Complaint asserts that the project was completed and accepted on 6/26/25. (Complaint, ¶ 2.) The Court thus grants the request for judicial notice as to the existence of the NOC and its recordation date, but not as to the disputed assertion of fact therein. A demurrer on statute of limitations grounds will not lie where the action may be, but is not necessarily barred. (<i>Lee v. Hanley</i> (2015) 61 Cal.4th 1225, 1232.) The Demurrer is therefore OVERRULED. The CMC is continued from 7/20/26 to 10/5/26 at 8:45am. Defendant shall file its Answer by 8/3/26 and shall give notice of this ruling.

